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CASE NAME: Bank of America N.A. v. Silver, et al.

CASE NO.: 24SMCV05734

MOTION: Motion for Summary Judgment/Adjudication

HEARING DATE: 8/27/2026

Legal Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) “The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in¿Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs.”¿(CCP,¿§ 437c(f)(1).)¿If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (Gonzales v. Superior Court¿(1987) 189 Cal.App.3d 1542, 1544.)¿ “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP,¿§ 437c(t).)¿

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.¿(CCP, §¿437c(c).)¿The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (Murillo v. Rite Stuff Food Inc. (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment…” (Gold v. Weissman (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (Jackson v. County of Los Angeles (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when¿a material fact is the witness’s¿state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)¿

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here¿is no
obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.”¿(Consumer Cause, Inc. v.¿SmileCare¿(2001) 91 Cal.App.4th 454, 468.)¿

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues and to¿frame¿the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co.¿(2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability¿as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)¿

Analysis

Plaintiff Bank of America, N.A. moves for summary judgment, or in the alternative, summary adjudication in its favor on the operative complaint against Defendant Joel H. Silver. Plaintiff asserts that the subject deed of trust should be reformed to properly reflect the intention of the parties, and Silver cannot dispute any material facts. Plaintiff seeks adjudication of the following issues:

Issue No. 1: The first cause of action for reformation should be adjudicated in Bank of America’s favor because the evidence establishes that the intent of Joel H. Silver and Bank of America was for the $15,800,000.00 deed of trust to encumber the entirety of 470 Layton Way Los Angeles California 90049 (“Layton Property”); and

Issue No. 2: The second cause of action for declaratory relief should be adjudicated in Bank of America’s favor because the evidence establishes that the intent of Joel H. Silver and Bank of America was for $15,800,000.00 deed of trust to encumber the entirety of the Layton Property.

Plaintiff’s request for judicial notice is GRANTED.

Plaintiff meets its initial burden to show entitlement to the requested reformation and declaratory relief. Reformation is an equitable remedy which allows the court to rewrite a contract to conform it to the mutual understanding of the parties at the time they entered into it. (Civ. Code § 3399; Hess v. Ford Motor Co. (2002) 27 Cal.4th 516, 524.) The remedy of reformation has two factual elements: (1) the parties had a mutual understanding at the time they entered into the contract, and (2) there is a contract whose words and/or legal effect do not reflect this mutual understanding. (Id.) “Extrinsic evidence is necessary because the court must divine the true intentions of the contracting parties and determine whether the written agreement accurately represents those intentions.” (Id. at 525.) Ordinary negligence does not bar a claim for mutual mistake because “ ‘[t]here is an element of carelessness in nearly every case of mistake.’ ” (Id. at 529.) “Only gross negligence or ‘preposterous or irrational’ conduct will [bar] mutual mistake.” (Ibid.) If the mistake is unilateral, the plaintiff must show that “the other at the time knew or suspected”. (Civ. Code § 3399.) “Reformation of a deed is equitable relief permitted for mutual or unilateral mistake, fraud or unconscionable conduct even though not fraudulent or illegal, if the rights of innocent third party purchasers for value are not prejudiced.” (MacFarlane v. Peters (1980) 103 Cal.App.3d 627, 631, citations omitted.)

CCP section 1060 provides that a person may bring an action for declaratory relief if he or she “desires a declaration of his or her rights or duties with respect to another, or in respect to, in, over or upon property . . . .” (CCP § 1060.) A request for declaratory relief may be brought alone or with other relief. (Id.) The plaintiff must show a proper subject of declaratory relief and an actual controversy involving justiciable questions relating to the party’s rights or obligations. (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 79.)

The Complaint alleges on August 24, 2018, Bank of America lent $15,800,000.00 to Joel and Karyn Silver, individually and as Trustees of the Silver Community Property Trust. The loan was secured by the Subject Deed of Trust for the same amount against the Layton Property. Pursuant to the agreement and intent of Bank of America and the Silvers, the Subject Deed of Trust was supposed to describe the entirety of the Layton Property, which as set forth above, is comprised of 5 parcels. (Compl., ¶ 25.) Subsequently, Plaintiff discovered the Deed of Trust inadvertently omitted the legal descriptions of several of the parcels that make up the entirety of the Layton Property. (Id.) The omission in the Subject Deed of Trust was the result of a scrivener’s error. (Id., ¶ 26.) The omission in the Deed of Trust can be reformed by adding the legal descriptions for Parcels 2, 3, 4, and 5, including their respective assessor’s parcel numbers, so the legal description in the Deed of Trust properly describes the entirety of the Layton Property. (Id.) Plaintiff claims entitlement to reformation of the Subject Deed of Trust to reflect the correct legal description of the Layton Property pursuant to Civil Code, sections 3399 to

3402, as well as declaratory relief stating the same. (Id., ¶¶ 27, 31.)

Plaintiff presents evidence supporting all the required facts for reformation based on unilateral or mutual mistake. In August 2018, Plaintiff lent $15,800,000.00 to Joel H. Silver and Karyn A. Silver, individually and as Trustees of the Silver Community Property Trust ("Loan"). (SS No. 1.) The Loan was secured by a second position deed of trust for the same amount against the Layton Property that was recorded in the Los Angeles County Recorder's Office on August 31, 2018, as Instrument No. 20180886258 ("Deed of Trust"). (SS No. 2.) Plaintiff provides that legal description of the Layton Property and its five APN parcels. (SS Nos. 3-6.) Due to a scrivener's error, the legal description on the Deed of Trust did not completely describe the Layton Property. (SS No. 7.) Rather, Parcels 2, 3, 4, and 5, and APNs 4429-017-007 and 4429-020-024 were inadvertently omitted. (SS Nos. 8-9, 28, 45-49.) It was not until approximately June 2024 that BoA discovered the error. (SS No. 10.)

Plaintiff shows that the parties had the mutual intention of covering the entire Layton Property, including all the parcels described, with the Deed of Trust. Prior to funding the $15,800,000.00 loan, the Silvers, or someone acting on their behalf, completed two loan applications: (1) Custom Mortgage Loan Application & Certification and (2) Uniform Residential Loan Application (collectively, "Loan Applications"). (SS No. 11) The Loan Applications evidenced the Silvers' desire to obtain a second loan from BoA secured by a second position deed of trust against the entirety of the Layton Property, which the Silvers represented, in the Custom Mortgage Loan Application, was valued at approximately $70,000,000.00. (SS Nos. 11-13.) Both Joel and Karyn Silver signed the Custom Mortgage Loan Application and Uniform Residential Loan Application as Borrower and Co-Borrower, respectively, in their individual and trustee capacities. (SS Nos. 14-17.) The Loan Applications do not suggests that only part or some of the Layton Property would be encumbered by the Deed of Trust. (SS Nos. 13.) Karyn Silver confirms this intention. (SS Nos. 13, 49-51.) Plaintiff also had engaged an appraiser to prepare an appraisal of the Property. (SS No. 18.) The appraiser conducted an appraisal of the entirety of the Layton Property, including all of the parcels. (SS No. 19-21.) The Silver received this appraisal. (SS No. 22.) The Silvers also executed a Certification of Trust (2nd Lien) ("Certificate of Trust"), which states that the credit will be secured by real property located at 470 Layton Way, Los Angeles, CA 90049. (SS Nos. 23-26.) The Silver once again, signed the Certification of Trust on August 24, 2018.

(SS Nos. 25-26.) Thereafter, on August 24, 2018, the Silvers, individually and as trustees of the Silver Community Property Trust, executed the Adjustable Rate Note in the amount of $15,800,000.00 ("Note"). (SS Nos. 27-28.) The Note, on multiple pages, contains the same address for the Layton Property. (SS Nos. 29-30.) The Deed of Trust includes three riders: (1) Cross Default Rider (2nd Lien); (2) Custom Mortgage Rider (2nd Lien); and (3) Planned Unit Development Rider (2nd Lien) (collectively, the "Riders"), which also clearly state throughout that the security is the Layton Property. (SS Nos. 31-36.) The Silver signed the Riders on August 24, 2018. (SS Nos. 37-44.) Thus, the intent of BoA and the Silvers was for the Deed of Trust to contain a legal description and APN that described all of the Layton Property, not just Parcel 1 or three of the five APNs. (SS Nos. 49-51.) The Silvers' other acts outside the loan transaction also confirm the parties' mutual intent. For example, documents filed by the Silvers in the dissolution of marriage action confirm that the Deed of Trust encumbered all of the Layton Property. (SS Nos. 55-59.) In a bankruptcy action, Ms. Silver stipulated that the Layton Property is "made up of five parcels." (SS No. 60.) Mr. Silver admits, in responses to Requests for Admissions, that the Deed of Trust is a valid and enforceable encumbrance on the Layton Property. (SS No. 61.) This evidence also establishes that the Silvers likely knew or suspected that the omission of the entire Layton Property was a mistake. (Civ. Code § 3999.)

Plaintiff thereby shows that it is
entitled to reformation of the Deed of Trust to reflect the correct legal description of the Layton Property pursuant to Civil Code sections 3399 to 3402, as a result of the inadvertent omission of the legal description and APNs in the Deed of Trust. Defendants have not opposed and thus fail to meet their responsive burden to show a dispute of material fact.

Accordingly, the motion is GRANTED.